

Court No. - 36

Case :- WRIT - C No. - 35761 of 2011

Petitioner :- Rakesh Kumar Verma

Respondent :- U.P. Power Corporation Ltd. And Others

Petitioner Counsel :- Ashish Kumar Gupta

Respondent Counsel :- C.S.C.,H.P. Dube

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Rajesh Chandra,J.

On prayer made by Sri H.P. Dubey, learned counsel for the respondent Nos. 1 & 3, the case is directed to be put up as fresh before appropriate Bench on 14.7.2011 so as to enable him to obtain instructions in the matter.

Order Date :- 5.7.2011

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Court No. - 32

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Petitioner :- Rakesh Kumar Verma

Respondent :- U.P. Power Corporation Ltd. And Others

Petitioner Counsel :- Ashish Kumar Gupta

Respondent Counsel :- C.S.C.,H.P. Dube

Hon'ble Sunil Ambwani,J.

Hon'ble Pankaj Mithal,J.

Heard learned counsel for the parties.

The petitioner has challenged the demand raised in the electricity bill of Rs.4,21,464/- against M/s Ambey Engg. Works through its proprietor Shri Rakesh Kumar Verma, in respect of the fixed charges at Rs.1029.60 and arrears of Rs.4,17,979/-, of Connection No.514046, KNO No.03815140.

It is submitted that M/s Ambey Engg. Works had applied for electricity connection but that the connection was not provided to him. The welding work is done by the petitioner with the use of generators. The petitioner has also relied upon an order of the District Consumer Forum, Varanasi in Case No.234 of 2003 in which directions were issued on 2.6.2007 to cancel all the bills sent in the name of M/s Ambey Engg. Works.

We do not find that the petitioner has made statutory representation to the Executive Engineer under Para 6.5 of the U.P. Electricity Supply Code, 2005 made under the Electricity Act, 2003, which provides for statutory remedy for correction of bills.

This writ petition raising questions of fact need not be decided under Art.226 of the Constitution of India. The petitioner is relegated to the remedy of filing appropriate statutory representation to the Executive Engineer of the concerned division.

The writ petition is **dismissed** accordingly.

Order Date :- 14.7.2011

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